

TWENTIETH CONGRESS OF THE)
REPUBLIC OF THE PHILIPPINES)
First Regular Session

HOUSE OF REPRESENTATIVES
HOUSE BILL NO. 5323



Introduced by REPRESENTATIVE MA. NINA FRANCESCA P. LACSON

EXPLANATORY NOTE

Bullying remains one of the most urgent and persistent challenges in Philippine education. Recent studies confirm that the Philippines has one of the highest bullying rates in the world, with devastating consequences for both individual students and the nation's economy.

According to Abrigo, Lingatong, and Relos (2024), bullying contributes to a 0.05 standard deviation gap in average student achievement between proficient and non-proficient learners, which translates to a potential loss of ₱10 to ₱20 billion annually in economic activity.

Additionally, the 2022 Programme for International Student Assessment (PISA) reveals alarming figures: 3 out of every 4 Filipino students have experienced bullying at least once in the last 12 months, while more than one-third suffer bullying at least once a week.

These incidents have profound consequence. Victims exhibit poor mental health outcomes (Moore, et al. 2017; Schoeler, 2018), psychosomatic conditions (Gini, et al. 2014), and worse academic performance (Halliday, et al. 2021). Long-term effects extend to lower labor force participation, reduced income, and diminished wealth accumulation later in life (Brimblecombe, et al.). In 2022, PISA data further revealed that the Philippines posted the highest average bullying exposure score among 15-year-old students in 80 participating countries, with 43% of girls and 53% of boys experiencing bullying multiple times a month, compared to the OECD average of just 20% and 21% respectively.

The problem has only worsened with the rise of cyberbullying, which is no longer limited to school hours or physical proximity. With the proliferation of artificial intelligence (AI)-assisted and AI-generated content, bullying has reached new and more destructive forms. Open-source and mobile AI tools now allow even minors to create deepfakes and manipulated images or videos of their peers, sometimes of a

graphic or sexual nature. Experts warn that such non-consensual, AI-generated content inflicts lasting psychological trauma, as “once seen, it cannot be unseen”.

Victims of cyberbullying, particularly when amplified by AI, are more likely to avoid school, become chronically absent, or even drop out. Studies link repeated online harassment with Post-Traumatic Stress Disorder (PTSD) in adolescents, with over 50% of affected teens showing severe trauma symptoms. Families of victims also suffer indirectly – experiencing shame, anxiety, grief, and social isolation.

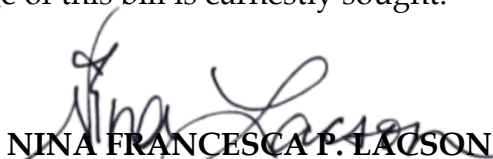
While the Department of Education’s Child Protection Policy (DepEd Order No. 40, s. 2012) and Republic Act No. 9344 (Juvenile Justice and Welfare Act) provide frameworks for accountability and rehabilitation, they do not expressly contemplate AI-assisted or AI-generated bullying acts. This legal gap leaves students vulnerable to the rapidly evolving threats posed by technology.

Thus, this measure seeks to:

1. Amend the Anti-Bullying Act of 2013 to expressly cover AI-assisted or AI-generated content as a form of bullying;
2. Define “AI-assisted or AI-generated content” to provide clarity and future-proof the law;
3. Direct schools to educate students and parents on the risks and responsible use of AI tools; and
4. Mandate the Department of Education to formulate standards and monitoring systems to address AI-driven bullying.

In doing so, the State reaffirms its constitutional duty to protect the welfare of children and to advance their right to quality education in a safe and supportive environment.

In view of the foregoing, the immediate passage of this bill is earnestly sought.


MA. NINA FRANCESCA P. LACSON
Manila Teachers Party-list

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AN ACT
EXPANDING THE DEFINITION OF BULLYING UNDER REPUBLIC ACT NO. 10627, OTHERWISE KNOWN AS THE "ANTI-BULLYING ACT OF 2013," TO INCLUDE AI-GENERATED AND AI-ASSISTED FORMS OF BULLYING, AND MANDATING THE FORMULATION OF STANDARDS AND GUIDELINES ON THE ETHICAL USE, MONITORING, REPORTING, AND ACCOUNTABILITY OF ARTIFICIAL INTELLIGENCE IN PUBLIC SCHOOLS

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

Section 1. Declaration of State Policy. – It shall be the policy of the State to create a safe and nurturing learning environment of our learners, and to protect them from bullying through AI-assisted or AI-generated means, by mandating schools to educate students and parents on the risks and responsible use of AI tools; and to formulate standards and monitoring systems to address AI-driven bullying.

Sec. 2. Amendment to Section 2 of Republic Act No. 10627. – Section 2 is hereby amended to read as follows:

"Section 2. Acts of Bullying. – For purposes of this Act, 'bullying' shall refer to any severe or repeated use by one or more students of a written, verbal, **AI-ASSISTED OR AI-GENERATED**, or electronic expression, or a physical act or gesture, or any combination thereof, directed at another student that has the effect of actually causing or placing the latter in reasonable fear of physical or emotional harm or damage to his property; creating a hostile environment at school for the other student; infringing on the rights of the other student at school; or materially and substantially disrupting the education process or the orderly operation of a school; such as, but not limited to, the following:

a. Any unwanted physical contact between the bully and the victim like punching, pushing, shoving, kicking, slapping, tickling, headlocks, inflicting school pranks, teasing, fighting and the use of available objects as weapons;

- b. Any act that causes damage to a victim's psyche and/or emotional well-being;
- c. Any slanderous statement or accusation that causes the victim undue emotional distress like directing foul language or profanity at the target, name-calling, tormenting and commenting negatively on victim's looks, clothes and body; and
- d. Cyber-bullying or any bullying done through the use of technology, **INCLUDING AI-ASSISTED OR AI-GENERATED SYSTEMS OR CONTENT**, or any electronic means.

FOR PURPOSES OF THIS ACT, "AI-ASSISTED OR AI-GENERATED CONTENT" SHALL REFER TO ANY TEXT, IMAGE, AUDIO, VIDEO, OR DIGITAL OUTPUT PRODUCED IN WHOLE OR IN PART THROUGH ARTIFICIAL INTELLIGENCE TOOLS, SYSTEMS, OR ALGORITHMS, WHICH MAY BE USED TO HARASS, DECEIVE, INTIMIDATE, OR CAUSE EMOTIONAL OR PHYSICAL HARM."

Sec. 3. Amendment to Section 3 of Republic Act No. 10627. – Section 3 is hereby amended to read as follows:

"[xxx]

(f) Educate students on the dynamics of bullying, the anti-bullying policies of the school, **THE RISKS, ETHICAL USE, AND POTENTIAL MISUSE OF AI-ASSISTED OR AI-GENERATED TOOLS**, as well as the mechanisms of such school for the anonymous reporting of acts of bullying or retaliation;

(g) Educate parents and guardians about the dynamics of bullying, the anti-bullying policies of the school, **INCLUDING HOW AI-ASSISTED OR AI-GENERATED CONTENT MAY BE USED TO HARASS, MISLEAD, OR HARM STUDENTS**, and how parents and guardians can provide support and reinforce such policies at home."

Sec. 4. Amendment to Section 7 of Republic Act No. 10627. – Section 7 is hereby amended to include:

"The Department of Education (DepEd) shall promulgate the necessary rules and regulations to implement the provisions of this Act, INCLUDING THE FORMULATION OF STANDARDS AND GUIDELINES FOR THE MONITORING, REPORTING, AND ACCOUNTABILITY OF AI-ASSISTED OR AI-GENERATED BULLYING ACTS."

Sec. 5. Separability Clause. – If, for any reason, any provision of this Act is declared to be unconstitutional or invalid, the other sections or provisions hereof which are not affected thereby shall continue to be in full force or effect.

Sec. 6. Repealing Clause. - All laws, decrees, orders, rules and regulations or parts thereof which are inconsistent with or contrary to the provisions of this Act are hereby repealed, amended or modified accordingly.

Sec. 7. Effectivity. - This Act shall take effect fifteen (15) days after its publication in at least two (2) national newspapers of general circulation.

Approved,